

24STCV06364 24STCV06364

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-09-01

Motion: DEFENDANT FORD MOTOR COMPANY'S NOTICE OF MOTION AND MOTION FOR SUMMARY ADJUDICATION

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Case Number: 24STCV06364 Hearing Date: September 1, 2026 Dept: 731

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS
ANGELES - CENTRAL DISTRICT

SHIVA YAZDI,

Plaintiff,

vs.

FORD MOTOR COMPANY; SUNRISE
FORD OF NORTH HOLLYWOOD; and DOES 1 through 10, inclusive,

Defendants.

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CASE NO: 24STCV06364

[TENTATIVE] ORDER RE: DEFENDANT

FORD MOTOR COMPANY'S NOTICE OF MOTION AND MOTION FOR SUMMARY ADJUDICATION

Dept. 731

September 1, 2026

9:30 a.m.

Matter No. 20

Moving Party: Defendant, Ford Motor Company

Opposing Party: None

Notice: OK

Background Facts

Plaintiff Shiva Yazdi sues

Defendant Ford Motor Company ("Ford"), Sunrise Ford of North Hollywood

("Sunrise"), and Does 1 through 10 pursuant to a March 14, 2024, Complaint,

which alleges five claims against Ford—four claims arising from the

Song-Beverly Consumer Warranty Act ("SBA"), and one claim for common law Fraudulent

Inducement – Concealment—in addition to a single claim for Negligent Repair

against Sunrise.

Now before the Court is Defendant

Ford Motor Company's unopposed June 5, 2026, motion for summary adjudication of the Complaint's fifth cause of action for Fraudulent Inducement - Concealment.

Motion for Summary

Adjudication

Preliminary

Considerations

i. Hearing

Within 30 Days of Trial

A motion for summary judgment or adjudication shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise. (Code Civ. Proc., § 437c, subd. (a)(3).) Separately, California courts must hear a timely filed motion for summary judgment or adjudication before the start of trial unless there is some indication that the motion is defective under Code of Civil Procedure section 437c. (See *Cole v. Superior Court* (2022) 87 Cal.App.5th 84, 88 [error for court to refuse to hear timely filed motion for summary judgment before trial because of calendaring issues]; *CFP BDA, LLC v. Superior Court* (May 2, 2025) 112 Cal.App.5th 1006, 1009-1010 [error for court to refuse to hear timely filed motion for summary judgment before trial because movant did not comply with local rule requiring papers to be filed within ten days of reserving hearing date].)

Here, Ford's motion for summary

adjudication is set for hearing on September 1, 2026, within 30 days of the September 29, 2026, trial set in this action. However, the motion for summary adjudication was timely filed. The motion was filed on June 5, 2026, i.e., more than 81 calendar days plus two court days prior to the September 1, 2026, hearing, in compliance with Code of Civil Procedure section 437c, subdivision (a)(2). Consequently, it would be an error for the Court not to hear Ford's motion.

The Court accordingly proceeds with a discussion of the merits of Ford's motion.

ii. Lack
of Opposition from Plaintiff

The Court briefly notes that Ford properly served its motion for summary adjudication on Plaintiff's counsel via email. (Compare, e.g., Complaint, p. 1 [listing service email as ] & Jul. 24, 2026, Plaintiff's Notice of Case Reassignment [designating as address for e-service], with Motion papers at Proof of Service [service at above addresses, as well as on individual Plaintiff's counsel].)

Despite proper service, Plaintiff has failed to file an opposition to Ford's motion. This despite the fact that on June 8, 2026, Ford filed two ex parte applications seeking an order either continuing trial in this action beyond September 29, 2026, to comply with the more-than-30-days-before-trial requirement or shortening time to hear Ford's motion, with the Court denying the applications on June 15 and 18, 2026, at hearings attended by counsel for both parties. Later still, on June 30, 2026, the Clerk served a notice of case reassignment to the presiding bench officer, which Plaintiff then noticed to the parties in the action on July 24, 2026. Under these circumstances, there is an ample record to support notice of the present motion to Plaintiff and a lack of response from Plaintiff, who could have raised issues relating to Code of Civil Procedure section 437c, subdivision (a)(3) in an opposition to Ford's motion.

Having been afforded an ample opportunity to respond, the Court proceeds with an analysis on the merits of Ford's motion, without the benefit of an opposition from Plaintiff.

Legal Standard

A motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact for trial or that the moving party is entitled to a judgment as a matter of law. (Code of Civ. Proc., § 437c, subd. (c).) A party may also seek summary adjudication of select causes of action, affirmative defenses, claims for damages, or issues of duty, which may be made by a standalone motion or as an alternative to a motion for summary judgment and proceeds in all procedural respects like a motion for summary judgment, but which must completely dispose of the challenged cause of action, affirmative

defense, claim for damages, or issue of duty. (Code Civ. Proc., § 437c, subds. (f)(1)-(2), (t).)

The moving party bears the initial burden of production to make prima facie showing no triable material fact issues. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) This burden on summary judgment or adjudication “is more properly one of persuasion rather than proof, since he must persuade the court that there is no material fact for a reasonable trier of fact to find, and not to prove any such fact to the satisfaction of the court itself as though it were sitting as the trier of fact.” (*Id.* at p. 850, fn. 11.) If the moving party meets this burden, the burden shifts to the opposing party to make a rebuttal prima facie showing that a triable issue of material fact exists. (*Id.* at p. 849.)

Where a defendant seeks summary judgment or adjudication, the defendant must show that either “one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action.” (Code Civ. Proc., § 437c, subd. (o)(2).) A defendant may satisfy this burden by showing that the claim “cannot be established” because of the lack of evidence on some essential element of the claim. (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 574, 590.) Once the defendant meets this burden, the burden shifts to the plaintiff to show that a “triable issue of one or more material facts exists as to that cause of action or defense thereto.” (*Ibid.*) “[I]n ruling on motions for summary judgment courts are to “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” [Citations].” (*Cheal v. El Camino Hospital* (2014) 223 Cal.App.4th 736, 760.)

Discussion

i. Summary

Adjudication, Fifth Cause of Action, Fraudulent Inducement – Concealment – Issue No. 3: Claim Barred by Economic Loss Rule

The Complaint’s fifth cause of action alleges a common law claim of Fraudulent Inducement — Concealment against Ford on the grounds that Plaintiff leased and/or purchased [sic] a vehicle manufactured and/or distributed by Ford, which Plaintiff did but would not have leased and/or purchased had Plaintiff known about a material

transmission defect in the leased and/or purchased vehicle, with Ford having pre-existing knowledge not only of the defect, but also of its inability to conform the defect to warranty. (See Complaint, ¶¶ 68-83.)

Ford's third ground for summary adjudication of the fifth cause of action is that the claim is barred by the economic loss rule.

After review, the Court finds that Ford carries its burden on summary adjudication.

Under the economic loss rule, a plaintiff may not recover in tort for negligently inflicted purely economic losses, unless the defendant's injury-causing conduct violated a duty independent of the contract and the defendant's conduct caused physical damage or personal injury. (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 20, 26, 44 (*Rattagan*); see *Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988 (*Robinson Helicopter*).) In other words, there is no tort duty to guard against purely economic losses. (*Southern California Gas Leak Cases* (2019) 7 Cal.5th 391, 398.)

Economic loss consists of damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property. (*Robinson Helicopter*, *supra*, at p. 988; see *Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 483; *Northern American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 777, fn. 8.)

In *Dhital v. Nissan N. Am., Inc.*, the Court of Appeal initially addressed the economic loss rule in the specific context of fraudulent inducement by concealment. (*Dhital v. Nissan N. Am., Inc.* (2022) 84 Cal.App.5th 828, 840.) The court held concealment-based claims for fraudulent inducement are not barred by the economic loss rule “because a defendant’s conduct in fraudulently inducing someone to enter a contract is separate from the defendant’s later breach of the contract or warranty provisions that were agreed to.” (*Id.* at 841.)

But more recently, the California

Supreme Court offered further guidance on the economic loss rule. In *Rattagan v. Uber Techs., Inc.*, the issue was whether a Plaintiff could “assert an independent claim of fraudulent concealment in the performance of a contract?” (*Rattagan*, supra, 17 Cal.5th at p. 38.) The Court held that a plaintiff may only assert a separate claim of fraudulent concealment based on conduct occurring in the course of a contractual relationship “if the elements of the cause of action can be established independently of the parties’ contractual rights and obligations and the tortious conduct exposes the plaintiff to a risk of harm beyond the reasonable contemplation of the parties when they entered into the contract.” (*Id.* at p. 45, emphasis added.)

Of particular importance to this Court, the California Supreme Court initially agreed to hear *Dhital* on appeal but stayed the case pending considering of a “related issue” in *Rattagan v. Uber Technologies, Inc.* Then, on December 18, 2024, approximately three months after issuing its decision in *Rattagan*, the Court dismissed the appeal in *Dhital* without hearing the case. This might reasonably suggest that the Court viewed *Rattagan* as having resolved the issue raised by *Dhital*.

Moving to Ford’s application of the evidence to the law, Ford presents evidence in the form of Plaintiff’s pleadings, deposition testimony, and discovery responses—against which no objection has been lodged in the record by Plaintiff—to show that insofar as the Concealment claim goes, Plaintiff’s damages do not arise independently from the SBA claims in the Complaint where “Plaintiff does not allege any personal injury or property damage beyond the alleged defective vehicle itself” and “Plaintiff seeks only economic losses as a result of her disappointed expectations.” (Motion, p. 14, citing Motion, Separate Statement, Undisputed Material Fact (“UMF”) Nos. 5, 6.)

A review of the evidence cited in Ford’s UMFs confirms the propositions for which the evidence cited stands. The cited evidence is comprised of references to the allegations made by Plaintiff in the Complaint, Plaintiff’s deposition testimony relating to damages, and Plaintiff’s responses to certain form interrogatories, cited for the propositions that “Plaintiff does not allege any personal injury or property damage beyond the alleged defective vehicle itself” and “Plaintiff seeks only economic losses as a result of her disappointed expectations.” (Motion, Separate Statement, UMF No. 5, citing Motion, *Pisciotta Decl.*, ¶ 2, Ex. 1

[Complaint at ¶¶ 7, 9] & ¶ 5, Ex. 4 [transcript at 45:24-26:1 and 70:4-71:6, beginning at pages 151 and 176 of the overall PDF pagination—page numbers not showing] & ¶ 8, Ex. 7 [responses to Form Interrogatories—General, Nos. 6.1, 7.1]; see also Motion, Separate Statement, UMF No. 6, citing Motion, Pisciotta Decl., ¶ 5, Ex. 4 [at same] & ¶ 8, Ex. 7 [at same].) A review of this evidence confirms the propositions for which the evidence is cited. The citations to the Complaint primarily serve to highlight the purchase or lease of the subject vehicle and tied-in warranties. The deposition testimony prima facie shows a lack of damages to person or property. And the responses to interrogatories show Plaintiff has deemed physical, mental, and emotional damages “not applicable” while citing Plaintiff’s discovery production in support of its claims for injuries. In turn, Plaintiff’s production of documents is cited in the moving papers in UMF No. 10 as being limited to 24 documents, all relating to transactions arising from the lease of the subject vehicle in this action, which a review of the production confirms for summary adjudication purposes. (Motion, pp. 8-9, citing Motion, Separate Statement, UMF No. 10, in turn citing Motion, Pisciotta Decl., ¶ 4, Ex. 3 [Plaintiff’s document production, labeled YAZ000001-YAZ000024].)

Having carried its burden on summary adjudication, the burden shifts to Plaintiff, who failed to file an opposition, and thus cannot carry her burden.

Summary adjudication of the fifth cause of action is therefore proper on Issue No. 3.

ii. Summary

Adjudication, Fifth Cause of Action, Fraudulent Inducement – Concealment – Issue Nos. 1-2

Having granted Ford’s motion on Issue No. 3, the Court does not further discuss Issue Nos. 1-2.

Discussion

Defendant Ford Motor Company’s motion is GRANTED.

Defendant Ford Motor Company is ordered to give notice.

Parties who intend to submit

on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: September 1, 2026 _____

MARK C. KIM

Judge of the
Superior Court